



General Assembly

February Session, 2026

Raised Bill No. 5564

LCO No. 3098



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING VICTIM STATEMENTS AND REQUIREMENTS
FOR VICTIM NOTIFICATION.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 54-91c of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) For the purposes of this section, "victim" means a person who is a
4 victim of a crime, the legal representative of such person, a member of a
5 deceased victim's immediate family or a person designated by a
6 deceased victim in accordance with section 1-56r.

7 (b) (1) Prior to any proceedings involving the dismissal of a charge
8 against any defendant or the entry of a nolle prosequi to a charge against
9 a defendant, or (2) prior to the imposition of sentence upon any
10 defendant who has been found guilty of any crime or has pleaded guilty
11 or nolo contendere to any crime, and prior to the acceptance by the court
12 of a plea of guilty or nolo contendere made pursuant to a plea agreement
13 with the state, the court shall permit any victim of the crime to appear
14 before the court for the purpose of making a statement for the record,
15 which statement may include the victim's opinion [of] concerning the

16 dismissal of a charge against any defendant or the entry of a nolle
17 prosequi to a charge against a defendant or any plea agreement. In lieu
18 of such appearance, the victim may submit a written statement or, if the
19 victim of the crime is deceased, the legal representative or a member of
20 the immediate family of such deceased victim may submit a statement
21 of such deceased victim to the state's attorney, assistant state's attorney
22 or deputy assistant state's attorney in charge of the case. Such state's
23 attorney, assistant state's attorney or deputy assistant state's attorney
24 shall file the statement with the sentencing court and the statement shall
25 be made a part of the record at the sentencing hearing. Any such
26 statement, whether oral or written, shall relate to the facts of the case,
27 the appropriateness of any penalty and the extent of any injuries,
28 financial losses and loss of earnings directly resulting from the crime for
29 which the defendant is being sentenced. The court shall inquire on the
30 record whether any victim is present for the purpose of making an oral
31 statement or has submitted a written statement. If no victim is present
32 and no such written statement has been submitted, the court shall
33 inquire on the record whether an attempt has been made to notify any
34 such victim as provided in subdivision (1) of subsection (c) of this
35 section or, if the defendant was originally charged with a violation of
36 section 53a-167c for assaulting a peace officer, whether the peace officer
37 has been personally notified as provided in subdivision (2) of subsection
38 (c) of this section. After consideration of any such statements, the court
39 may refuse to accept, where appropriate, a negotiated plea or sentence,
40 and the court shall give the defendant an opportunity to enter a new
41 plea and to elect trial by jury or by the court.

42 (c) (1) Except as provided in subdivision (2) of this subsection, prior
43 to the imposition of sentence upon such defendant and prior to the
44 acceptance of a plea pursuant to a plea agreement, the state's attorney,
45 assistant state's attorney or deputy assistant state's attorney in charge of
46 the case shall notify the victim of such crime of the date, time and place
47 of the original sentencing hearing or any judicial proceeding concerning
48 the acceptance of a plea pursuant to a plea agreement, provided the

49 victim has informed such state's attorney, assistant state's attorney or
50 deputy assistant state's attorney that such victim wishes to make or
51 submit a statement as provided in subsection (b) of this section and [has
52 complied with a request from such state's attorney, assistant state's
53 attorney or deputy assistant state's attorney to submit a stamped, self-
54 addressed postcard for the purpose of such notification] such victim has
55 provided the state's attorney, assistant state's attorney, deputy assistant
56 state's attorney or the Office of Victim Services with up-to-date contact
57 information.

58 (2) Prior to the imposition of sentence upon a defendant originally
59 charged with a violation of section 53a-167c for assaulting a peace
60 officer, and prior to the acceptance of a plea pursuant to a plea
61 agreement, the state's attorney, assistant state's attorney or deputy
62 assistant state's attorney in charge of the case shall personally notify the
63 peace officer who was the victim of such crime of the date, time and
64 place of the original sentencing hearing or any judicial proceeding
65 concerning the acceptance of a plea pursuant to a plea agreement.

66 (3) If the state's attorney, assistant state's attorney or deputy assistant
67 state's attorney is unable to notify the victim, such state's attorney,
68 assistant state's attorney or deputy state's attorney shall sign a statement
69 as to such notification.

70 (d) Upon the request of a victim, prior to the acceptance by the court
71 of a plea of a defendant pursuant to a proposed plea agreement, the
72 state's attorney, assistant state's attorney or deputy assistant state's
73 attorney in charge of the case shall provide such victim with the terms
74 of such proposed plea agreement in writing. If the terms of the proposed
75 plea agreement provide for a term of imprisonment which is more than
76 two years or a total effective sentence of more than a two-year term of
77 imprisonment, the state's attorney, assistant state's attorney or deputy
78 assistant state's attorney in charge of the case shall indicate: (1) The
79 maximum period of imprisonment that may apply to the defendant; (2)
80 whether the defendant may be eligible to earn risk reduction credits

81 pursuant to section 18-98e; (3) whether the defendant may be eligible to
82 apply for release on parole pursuant to section 54-125a; and (4) whether
83 the defendant may be eligible for automatic erasure of such defendant's
84 criminal conviction pursuant to subsection (e) of section 54-142a.

85 (e) The provisions of this section shall not apply to any proceedings
86 held in accordance with section 46b-121 or section 54-76h.

This act shall take effect as follows and shall amend the following sections:		
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Section 1	<i>October 1, 2026</i>	54-91c
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Statement of Purpose:

To better align provisions concerning victim statements and victim notification and update an obsolete provision.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]